

GZ: 2023-0.358.049 dated July 7, 2023 (Case Number: DSB-D124.1185/22)

[Note from the editor: Names and companies, legal forms and product designations, addresses (including URLs, IP and email addresses), file numbers (and the like), statistical data, etc., as well as their initials and abbreviations may have been abbreviated and/or altered for pseudonymization reasons. Obvious spelling, grammar, and punctuation errors have been corrected.]

DECISION

RULING

The Data Protection Authority decides on the data protection complaint of Johannes A*** (complainant) dated August 31, 2022, against N*** Verkehrsbetriebe AG (respondent) regarding the violation of the right to erasure as follows:

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The complaint is dismissed as unfounded.

Legal bases: Art. 4 No. 7, Art. 6, Art. 17 para. 1 lit. d and para. 3 lit. b, Art. 51 para. 1, Art. 57 para. 1 lit. f, and Art. 77 para. 1 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter: GDPR), OJ No. L 119 of May 4, 2016, p. 1; §§ 18 para. 1 and 24 para. 1 and para. 5 of the Data Protection Act (DSG), Federal Law Gazette I No. 165/1999 as amended; § 132 para. 1 of the Federal Fiscal Code (BAO), Federal Law Gazette No. 194/1961 as amended; § 190 and § 212 of the Commercial Code (UGB), dRGBI. p. 219/1897 as amended; § 18 of the Value Added Tax Act 1994 (UStG 1994), Federal Law Gazette No. 663/1994 as amended.

REASONING

A. Submissions of the Parties and Procedural History

1. In a complaint dated August 31, 2022, the complainant approached the Data Protection Authority and claimed that he had been violated in his right to erasure by the respondent. In this regard, the complainant stated that, according to a letter from the respondent dated late June 2022, he had been found without a ticket on May 22, 2022, in a public transport vehicle in H***. Since the complainant was not in H*** at the relevant time and he possessed a climate ticket, he assumed that it was a case of mistaken identity. He communicated this to the respondent on June 20, 2022. On June 21, 2022, the respondent requested him to provide a copy of his climate ticket and an official photo ID. After sending a scan of the climate ticket, the case was closed. With the submission, he also requested the deletion of the scan of the climate ticket after the case was concluded. Furthermore, on June 21, 2022, the complainant submitted a request for erasure pursuant to Art. 17 GDPR to the respondent regarding the data arising from this case. On June 30, 2022, the respondent informed him that it would not comply with the complainant's request and relied on § 212 para. 1 UGB. Since the additional fee demand was based on a misunderstanding, it was clarified after the submission of the climate ticket that the accounting process should not have continued.

should be triggered. Accordingly, it was also clear at that moment that the personal data of the complainant should not have been processed. After the respondent deleted the complainant's climate ticket, they would agree with this. For the sake of complete accounting, only the data related to the issuance of the invoice or the additional fee, as well as the cancellation, should be retained. However, based on § 190 Abs. 4 UGB, the complainant views the registration and retention obligations differently. Since the data processing occurred unintentionally and the additional fee was resolved after a brief clarification, it should be assumed, in accordance with the principle of data minimization, that his personal data in the respective documents could be redacted—with a corresponding explanation. Furthermore, he suspects that the data was processed without a legal basis, as there were no grounds under Art. 6 GDPR, and therefore the data should be deleted according to Art. 17 Abs. 1 lit. d GDPR. The respondent triggered the booking process and thus the processing of his data through negligence (apparently not checking an identification document) in the first place. Therefore, the legality of the processing was never given.

2. In a statement dated September 25, 2022, the respondent summarized that during a check by employees of the respondent's "Security and Service" department on May 22, 2022, on line **, the passenger found there without a valid ticket provided, among other things, the complainant's date of birth and name as well as an address. At the same time, the passenger was issued an additional fee,

which is a contractual penalty based on the tariff and transportation conditions of the respondent. The incident and the personal data were processed in the data application used by the employees for documenting the control process, referred to as "Validation and Management of Ticket Checks" (hereinafter referred to as "****IS"). The personal data relevant for further legal proceedings from the control process were transferred via an interface to the data application "Management and Processing of Additional Fees" (hereinafter referred to as "MG**a"). In the course of debt collection, a reminder was sent to the complainant. Due to this reminder, the complainant contacted the department "Customer Dialogue" responsible for processing reminder fees on June 20, 2022, and denied being the person found during the check without a valid ticket. He stated that he was not in H*** at that time and that he possessed a climate ticket. The correspondence and the data provided therein were recorded and processed in the application "Customer Service Program for Additional Fees." Upon request, the complainant submitted a copy of his climate ticket. This was a valid ticket at the time of the check, which is why the additional fee was canceled and the reason for the cancellation was noted. In the "MG**a," the record of the additional fee, the complainant's name, the number, and the validity of the climate ticket were recorded. On June 21, 2022, the complainant's deletion request was received by the respondent. In the course of processing the complainant's deletion request, the deletion of individual data...

checked and the complete data set in the application "Customer Service Program Additional Charges" as well as the copy of the climate ticket in the application "MG**a" have been deleted. The reason for the cancellation or write-off noted in the data set has not been deleted. The response letter indicated that all data processed in the context of the deletion request would be retained for three years. The respondent is subject to the bookkeeping obligation set forth in § 190 UGB. Essentially similar obligations also arise from § 18 UStG 1994 and § 132 BAO. The entry into the accounting system occurs with the automated transmission of data from "****IS" to "MG**a", as this triggers a claim of the company against the passenger (and also a VAT booking) in "MG**a". This will subsequently be set to either "paid" or "written off." The cancellation, the associated accounting write-off, and the proof thereof are also subject to the accounting retention period. The purpose of these regulations is to ensure a verifiable documentation of accounting transactions for any potential audits by control authorities (tax authorities, auditors) for the legally prescribed duration. This is intended to fulfill the obligations of a proper merchant on the one hand and the verifiability of the accuracy of tax-relevant transactions on the other. Deletion or anonymization of the complainant's data would result in a distortion of the entry in the books, and the respondent would be unable to fulfill its obligations. The purpose of the data application "****IS" is to create a revision-proof documentation of the control process as well as the input and validation of additional charges issued therein. The data contained therein is therefore part of the business transaction underlying the booking and is also subject to retention obligations. Furthermore, the processing of data in "****IS" also serves the function of being the basis for the exercise or defense of legal claims. In particular, the data contained therein—additional to the information in "MG**a"—such as the general description of the person or the names of the controlling employees, serves as evidence in court in the event of a dispute over a claim. No negligent behavior can be attributed to the data collection in question. The employees requested identification for reasons of clarity in identifying a passenger. However, if a controlled passenger does not carry or present an ID, the employees have no coercive means to establish the identity. Therefore, the processing of the data until the end of the retention obligation on December 31, 2029, is necessary and thus permissible.

3. In the context of the hearing granted by the data protection authority, the complainant stated in his submission dated October 25, 2022, that no transport contract had been concluded. This would only come into effect if, as described in point A of the respondent's transport conditions, one boards a tram or a bus [Note by editor: shortened here for pseudonymization reasons]. Since the complainant did not do any of this on the day in question, he did not enter into a private law contract. entered and therefore could not be used as a legal basis for data processing. He could not understand the argument that an identity check would not be possible. The fact that the police regularly do not show up for such operations could neither be attributed to his area of responsibility nor be a reason for data processing. Anonymization would also be conceivable to eliminate the personal reference of the

data to the complainant. His complaint does not relate to the collection or processing of the general personal description of the controlled person. However, he continues to dispute the legality of the processing of his own data and maintains his opinion that this arose only out of negligence.

4. In its supplementary statement dated May 3, 2023, the respondent again confirmed that no personal data of the complainant were being processed in the data application "Customer Service Additional Charges." Regarding "****IS," the respondent submitted a data excerpt concerning the processed data of the complainant and stated that this data would subsequently be transferred to the "MG**a" system for debt collection and billing. In this program, processing occurs to fulfill accounting retention requirements. The respondent transmits 5 excerpts to "MG**a" named "Incident Main View," "Incident and Person Report," "Processing History Regarding the Incident," "Debtor Individual Item List," and "Change Documents Debtor." During the control of the controlled person, the address I***platz 5*/9*, **** H***, was indicated. In the course of debt collection, it was determined that Johannes A***, born on May 30, 199*, did not reside at the indicated address. For this reason, a query from the ZMR was made based on the legitimate interest in asserting legal claims, and the address was changed to V***-Gasse *3, **** H***. As already mentioned, the control or the resulting claim triggers an accounting process, whereby the relevant provisions on bookkeeping apply. The complainant himself admits that the changes to the books must remain traceable. For this reason, all changes to the data, as visible in the attachment "Change Documents Debtor" regarding the address, are documented. This results in the fact that the complainant's data remains stored in these change documents or must remain stored due to the aforementioned prohibition on erasure. Even if the master data for this incident (attachment "Incident Main View" in conjunction with attachment "Incident and Person Report") were to be changed.

5. In the context of the final hearing of the parties, the complainant stated in his letter dated May 11, 2023, that it is correct that he is not registered at the address I***platz 5*/9*, **** H***, and that he has never been. He is also not familiar with this address. Furthermore, he does not dispute that queries from the ZMR generally fall within the legitimate interest of the N*** public transport services. However, the complainant disputes that the query is permissible if it has not been sufficiently verified beforehand whether it pertains to the correct person, as was not the case here. As can be proven, he was not in H*** and thus not part of this control and

to the extent that his data was queried without justification. This was solely because the respondent had not taken (sufficient) measures to establish the identity of the controlled person. Of course, when presenting an ID, a false address could also be provided; in that case, the ZMR query would still be permissible, as steps would have been taken to verify the identity of the controlled person. Bookings must, of course, remain traceable. However, this booking should never have occurred. It only happened because the respondent did not take adequate measures to establish the identity of the controlled persons. "Traceable" does not mean that the bookings cannot be altered at all. It would be conceivable to replace the reference to my name, for example, with "Transaction ". This would still allow for the allocation of the bookings without linking my name or other data to it. These could then also be easily deleted. He is not complaining about the processing of his data in the course of the amendment request. However, the data visible in the annex "Incident Main View" and "Incident and Person Report" goes beyond the necessary data content for that purpose.

B. Subject of the Complaint

The subject of the complaint is the question of whether the respondent violated the complainant's right to deletion by not complying with his request for deletion.

C. Findings of Fact

1. On May 22, 2022, a passenger on line ** was checked by employees of the respondent and could not present a valid ticket. This person provided the name and date of birth of the complainant and the address I***platz 5*/9*, **** H*** during the check. The passenger was issued a surcharge.

Assessment of Evidence: This finding is based on the comprehensible statements of the complainant in his complaint dated August 31, 2022, as well as the supplementary statements of the respondent in its submissions dated September 25, 2022, and May 3, 2023.

This incident and the personal data were processed for the documentation of the control process in the data application "Validation and Management of Ticket Controls," also known as "****IS." The data relevant for debt collection and billing from the control process were transferred via an interface to the data application "Management and Processing of Surcharges," also known as "MG**a." In this program, the processing takes place to fulfill the accounting retention requirements.

Assessment of Evidence: These findings are based on the statements of the respondent in its submissions dated September 25, 2022, and May 3, 2023, which were not disputed by the complainant.

2. Since it was determined by the respondent in the course of debt collection that the complainant does not reside at the provided address, a query in the ZMR was conducted, and the address was changed to that of the complainant, namely V***-Gasse *3, **** H***.

Assessment of Evidence: This finding arises from the statements of the respondent in its submissions dated September 25, 2022, and May 3, 2023, along with the documents submitted.

3. In the course of debt collection, a reminder was sent to the complainant. After the complainant denied in a letter dated June 20, 2022, that he was the person encountered during the check without a valid ticket, this correspondence and the data provided therein were processed in the application "Customer Service Program Surcharges." Following a request from the respondent, the complainant submitted a copy of his climate ticket, after which the surcharge was canceled, and the reason for the cancellation was noted. In the data application "MG**a," among other things, the record of the surcharge, the name of the complainant, the number, and the validity of the climate ticket were recorded.

Assessment of Evidence: These findings are based on the statements of the respondent in its submission dated September 25, 2022, which were not disputed by the complainant.

4. In a letter dated June 21, 2022, the complainant submitted a request for the deletion of his personal data to the respondent.

The respondent then deleted the record and thus all personal data of the complainant in the applications "Customer Service Program Surcharge" and the copy of the climate ticket in the applications "MG**a." The reason for the cancellation noted in the record was not deleted.

In a letter dated June 30, 2022, the respondent informed the complainant, referring to § 212 para. 1 UGB and Art. 17 para. 3 lit. e GDPR, that it would not fully comply with the deletion request of June 21, 2022.

Assessment of Evidence: This finding is based on the statements of the complainant in his complaint dated August 31, 2022, and on the statements of the respondent in its submissions dated September 25, 2022, and May 3, 2023, which were not disputed by the complainant.

5. The respondent processes the following personal data of the complainant in its system "****IS" (the redactions were made by the respondent).

and concern, according to the respondent, personal data that is not that of the complainant:

[Note by the editor: The facsimile (graphic file) reproduced at this point from the system "****IS" containing personal data (including name, alleged address, and date of birth of the complainant, date, time, place, and specific circumstances of the control) cannot be pseudonymized with reasonable effort and has therefore been removed.]

The respondent processes the following personal data of the complainant in its system "Administration and Processing of Additional Fees – MG**a":

"Incident Main View"

[Note by the editor: The facsimile (graphic file) reproduced at this point from the system "MG**a" containing personal data (including name, alleged address, and date of birth of the complainant, date, time, place, and specific circumstances of the control) cannot be pseudonymized with reasonable effort and has therefore been removed.]

"Incident and Person Report"

[Note by the editor: The facsimile (graphic file) reproduced at this point from the system "MG**a" containing personal data (including name, alleged address, and date of birth of the complainant, date,

time, place, and specific circumstances of the control) cannot be pseudonymized with reasonable effort and has therefore been removed.]

"Processing History Regarding the Incident"

[Note by the editor: The facsimile (graphic file) reproduced at this point from the system "MG**a" containing personal data cannot be pseudonymized with reasonable effort and has therefore been removed.]

"Debtor Individual Item List"

[Note by the editor: The facsimile (graphic file) reproduced at this point from the system "MG**a" containing personal data (including name, alleged address, and date of birth of the complainant, date, time, place, and specific circumstances of the control) cannot be pseudonymized with reasonable effort and has therefore been removed. The reproduced booking lines indicate that the balance of the booked claim against the complainant was set to 0 by inserting a cancellation booking.]

"Change Documents Debtor"

[Note by the editor: The facsimile (graphic file) reproduced at this point from the system "MG**a" containing personal data cannot be pseudonymized with reasonable effort and has therefore been removed.]

Assessment of Evidence: These findings are based on the documents submitted by the respondent with the statement dated May 3, 2023, the accuracy of which has not been disputed by the complainant.

D. From a legal perspective, it follows that:

1. The respondent processes personal data of the complainant and is undoubtedly the controller within the meaning of Art. 4 No. 7 GDPR.
2. According to Art. 17 para. 1 GDPR, every data subject has the right to request the deletion of their personal data from a controller. According to para. 3 lit. b of the same provision, the controller may refuse such a deletion request insofar as the processing of the data is necessary "for compliance with a legal obligation to which the controller is subject under Union or Member State law."
3. The respondent relies on §§ 190 and 212 para. 1 UGB, § 18 UStG 1994, and § 132 BAO regarding the (further) storage of the complainant's personal data in the context of the cancellation of the additional fee.

According to § 212 para. 1 UGB, the entrepreneur must keep his books, inventories, opening balances, annual financial statements along with the management reports, consolidated financial statements along with the consolidated management reports, received business letters, copies of sent business letters, and documents for bookings in the books he is required to maintain according to § 190 (booking documents) in an orderly manner for seven years; furthermore, as long as they are relevant for an ongoing judicial or administrative procedure in which the entrepreneur is a party. The enumeration of the documents to be retained in § 212 para. 1 UGB is merely demonstrative according to the materials (see Fraberger/Petritz in Hirschler, BilR § 212 Rz 10; ErlRV RLG 52).

Tax law provides a parallel provision in § 132 BAO, whose provisions largely correspond to those of § 212 UGB (see U. Torggler in Straube/Ratka/Rauter, WK UGB II/RLG3 § 212 Rz 4). To the extent that business papers and other documents are relevant for tax assessment, these should also be retained for seven years (see also the recording obligation for invoices according to § 11 UStG 1994 regulated in § 18 UStG 1994).

The norm is a necessary requirement to comply with the accounting obligation according to §§ 189 et seq. UGB (see Steiner in Straube/Ratka/Rauter, UGB II/RLG § 212). Business transactions and accounting processes should be presented in a traceable manner to enable the competent authorities – over a certain period – to make tax assessments and, in particular, audits. The cancellation of a claim and the related accounting write-off must also be recorded in the accounting to document the creation and processing of this business case in a traceable manner.

4. Based on the findings made, the Data Protection Authority states that the personal data of the complainant was collected by the respondent without his involvement. The controlled person apparently acted with fraudulent intent when, during the control of his ticket, he did not provide his own personal data but that of the...

****1.**** The complainant disclosed his name and date of birth, as well as a false address. Nevertheless, on May 22, 2022, employees of the respondent encountered a passenger without a valid ticket, issued an additional charge to this individual, and thus triggered a business case in the sense of the UGB (Austrian Commercial Code) and the BAO (Federal Fiscal Code).

****2.**** As established, during this process, the control procedure, including the personal data of the complainant, was entered into the data application "Validation and Management of Ticket Controls," also referred to as "****IS," for the purpose of documenting the control procedure. The data relevant for debt collection and billing from the control procedure was transferred via an interface into the data application "Management and Processing of Additional Charges," also referred to as "MG**a," for the purpose of accounting retention. In both relevant data applications, the personal data of the complainant continues to be processed, as can be seen from the documentation submitted under point C.4.

****3.**** Based on the legal obligation in the UGB and the BAO, the respondent must be supported in that the storage of the relevant personal data of the complainant in the data applications "****IS" and "MG**a" is necessary for fulfilling the legal tasks assigned to the respondent under the UGB and the BAO, in order to comply with the principles of proper accounting. It should be noted that the documentation of the control procedure in the system "****IS" is directly related to the business case in "MG**a" and is thus significant for tax-related traceability.

****4.**** Even though it is absolutely understandable for the data protection authority that it is very frustrating for the complainant that his personal data continues to be stored by the respondent without his involvement despite the cancellation of the claim, it appears necessary for the data protection authority, in terms of accounting verifiability by the tax authority, to maintain a personal reference to the complainant.

****5.**** Against this background, the storage of the relevant personal data of the complainant in the data applications "****IS" and "MG**a" is necessary for fulfilling the legal tasks assigned to the respondent under the UGB and the BAO, in order to comply with the principles of proper accounting.

****6.**** Therefore, the respondent was obliged to retain the data relevant to the proceedings in accordance with § 132 Abs. 1 BAO and §§ 190, 212 UGB. In this case, there are also no indications that the complainant's data has been used by the respondent for purposes other than intended, which is why Art. 17 Abs. 1 lit. d GDPR is not applicable.

****7.**** As a result, the respondent rightly did not comply with the complainant's request for deletion dated June 21, 2022, as the processing is necessary under Art. 17 Abs. 3 lit. b GDPR.

****8.**** It was therefore to be decided accordingly.